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March 5, 2026

By: Reinhardt

An Act relating to tort liability; defining terms; prohibiting civil liability for certain persons under specified circumstances; providing exception; clarifying applicability of certain immunity; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 16.2 of Title 76, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Bodily injury" means any physical injury, any mental, psychological, or emotional injury, death, or any combination thereof;

2. "Criminal act of another" means any act or conduct which is prohibited by law and could result in punishment by a governmental entity; and

3. "Property damage" means any injury to or loss of use of real or personal property, or both.

1 B. No person or entity shall have civil liability under any
2 theory of law or equity for bodily injury or property damage arising
3 out of or resulting from the criminal act of another, including
4 where committed by an employee or agent, except where the person or
5 entity upon which such civil liability is sought to be imposed has
6 first been convicted of being a criminal accomplice in the
7 commission of such criminal act.

8 C. The immunity from civil liability required by this section
9 shall apply regardless of whether the person who committed the
10 criminal act which caused bodily injury or property damage is
11 apprehended, prosecuted, or convicted as a result of the criminal
12 conduct.

13 D. The provisions of this section provide immunity from civil
14 liability for simple negligence but do not provide immunity for
15 willful, wanton, or malicious acts of negligence or for gross
16 negligence.

17 SECTION 2. It being immediately necessary for the preservation
18 of the public peace, health or safety, an emergency is hereby
19 declared to exist, by reason whereof this act shall take effect and
20 be in full force from and after its passage and approval.

21 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
22 March 5, 2026 - DO PASS
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